

April 21, 2025

By: Stinson, Ranson, Archer,
Hefner, and Pittman of the
House

Gollihare of the Senate

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

A. For Medicaid managed care plans, the Oklahoma Health Care Authority shall ensure that the insurers, health plans, and managed care plans comply with federal and state laws, rules, and regulations applicable to coverage for mental health or substance use disorder services.

1 B. Contracts with Medicaid managed care plans must require
2 entities to conduct regular parity compliance analysis that contain
3 the information described in 42 U.S.C., Section 300gg-26(a)(8)(i-v)
4 for each nonquantitative treatment limitation imposed on mental
5 health or substance use disorder benefits in any classification of
6 care.

7 C. Contracts with Medicaid managed care plans must include
8 language requiring managed care plans and entities to conduct parity
9 analysis described in subsection B of this section for a
10 nonquantitative treatment limitation whenever as-written or in-
11 operation changes or amendments are made to that nonquantitative
12 treatment limitation, including prior authorization requirements.

13 D. State Medicaid programs and Children's Health Insurance
14 Programs (CHIP) must review and compile the analysis from all
15 managed care, CHIP, and alternative benefit plans to ensure
16 compliance and address any noncompliance through a standardized
17 process to mitigate findings of noncompliance.

18 E. The Oklahoma Health Care Authority shall develop a
19 standardized process for receiving, investigating, substantiating,
20 and resolving parity complaints.

21 F. The Oklahoma Health Care Authority shall make public the
22 surveys, financial analysis, managed care contract audits, de-
23 identified substantiated parity complaints, and parity reports
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1 prepared by the managed care entities and plans and the reports they
2 submit to document parity compliance.

3 G. The Oklahoma Health Care Authority shall also make public
4 any parity analysis, summary, or report submitted to the Centers for
5 Medicare and Medicaid Services regarding the Oklahoma Medicaid
6 managed care program within thirty (30) days of the state's
7 submission of these reports to the Centers for Medicare and Medicaid
8 Services.

9 SECTION 2. This act shall become effective November 1, 2025.

10 COMMITTEE REPORT BY: COMMITTEE ON HEALTH AND HUMAN SERVICES
11 April 21, 2025 - DO PASS
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